

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 788

Introduced by Bosn, 25.

Read first time January 07, 2026

Committee:

- 1 A BILL FOR AN ACT relating to the Financial Fraud Victims' Reimbursement
- 2 Fund; to amend section 84-222, Revised Statutes Supplement, 2025; to
- 3 change the administrator of the fund to the Nebraska State Patrol;
- 4 to provide powers and duties for the patrol; and to repeal the
- 5 original section.
- 6 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 84-222, Revised Statutes Supplement, 2025, is
2 amended to read:

3 84-222 (1) For purposes of this section:

4 (a) Financial transaction offense has the same meaning as in section
5 28-1601; and

6 (b) Victim includes both individuals and persons, including, but not
7 limited to, financial institutions.

8 (2) The Financial Fraud Victims' Reimbursement Fund is created. The
9 fund shall be administered by the Nebraska State Patrol ~~Attorney General~~.
10 The fund shall consist of assets forfeited from financial transaction
11 offenses as provided in subdivision (8)(b)(ii) of section 28-1601. Any
12 money in the fund available for investment shall be invested by the state
13 investment officer pursuant to the Nebraska Capital Expansion Act and the
14 Nebraska State Funds Investment Act.

15 (3) A victim who has suffered loss as a result of a financial
16 transaction offense may apply for reimbursement from the fund. An
17 application shall be submitted in a form and manner prescribed by the
18 Nebraska State Patrol ~~Attorney General~~.

19 (4) The Nebraska State Patrol ~~Attorney General~~ shall determine
20 whether an applicant has suffered a qualifying loss and, if so, the
21 extent of reimbursement that shall be made. An applicant shall only be
22 eligible to receive reimbursement from the funds forfeited as a result of
23 the financial transaction offense of which the applicant was a victim. If
24 there are more applicants with qualified losses than there are funds
25 available, the Nebraska State Patrol ~~Attorney General~~ shall distribute
26 the funds on a pro rata basis according to the amount of the qualifying
27 loss suffered.

28 (5) Funds relating to a financial transaction offense that are
29 transferred into the Financial Fraud Victims' Reimbursement Fund as
30 provided in subdivision (8)(b)(ii) of section 28-1601 shall remain in the
31 Financial Fraud Victims' Reimbursement Fund until the later of:

1 (a) Thirty-six months following the date of such transfer; or
2 (b) Resolution of any applications filed during such thirty-six
3 month period.

4 (6) Upon the expiration of the period described in subsection (5) of
5 this section, such funds shall be remitted to the State Treasurer for
6 distribution in accordance with Article VII, section 5, of the
7 Constitution of Nebraska.

8 **Sec. 2.** Original section 84-222, Revised Statutes Supplement, 2025,
9 is repealed.